

POLICY DOCUMENT of INTERNAL COMPLAINT COMMITTEE TO PREVENT SEXUAL HARASSMENT AT THE WORKPLACE

TESTINGXPRTS PRIVATE LIMITED
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PREVENTION OF SEXUAL HARASSMENT POLICY (POSH)

Preamble

The Parliament of India passed the “Sexual Harassment of Women at Workplace (Prevention, Prohibition, and Redressal) Act,” in the year 2013. The ACT provides protection against sexual harassment of women at workplace and for the prevention and redressal of complaints of sexual harassment and for the matters connected therewith or incidental thereto. The guidelines explicitly state the following: “It shall be the duty of the employer or other responsible persons in workplaces or other institutions to prevent or deter the commission of acts of sexual harassment and to provide the procedures for the resolutions, settlement, or prosecution of acts, of sexual harassment by taking all steps require.” Organizations like us i.e., TestingXperts Private Limited (India) are also bound by the Supreme Court’s directive and the Act. TestingXperts Private Limited (India) is committed to creating and maintaining an environment which is free of all forms of gender violence, sexual harassment, and discrimination on the basis of sex/gender. Following this, the organization is committed to uphold the Constitutional mandate ensuring the above mentioned human rights of all those who fall within its jurisdiction. As directed by the act TestingXperts Private Limited (India) has constituted a committee called “Internal Complaint Committee to Prevent Sexual Harassment of Women at the Workplace.” The following policy has been made keeping in mind the above facts.

Objective

The objectives of the Internal Complaint Committee to Prevent Sexual Harassment of Women at the Workplace are as follows:

1. To develop a policy against sexual harassment in the organization.
2. To evolve a permanent mechanism for the prevention and redressal of sexual harassment cases and other acts of gender-based violence in the organization.
3. To ensure the implementation of the policy in letter and spirit through proper reporting of the complaints and their follow-up procedures.
4. To uphold the commitment of the organization to provide an environment free of gender-based discrimination.
5. To create a secure physical and social environment to deter any act of sexual harassment.
6. To promote a social and psychological environment to raise awareness on sexual harassment in its various forms.

Scope

This Policy is applicable to all employees of TestingXperts Private Limited (India) , present and future, including persons employed on regular, temporary, ad hoc or daily wage basis, either directly or through an agent, including a contractor, whether for remuneration or not, or working on a voluntary basis or otherwise, whether the terms of employment are express or implied and includes a co-worker, a contract worker, probationer, intern or any employee called by any other such name.

Further the Policy is applicable to all allegations of Sexual Harassment (as defined hereinafter) made by an Employee, against another Employee, occurring during or beyond office hours or having occurred within or not limited to the office premises of the Company, during the course of an Employee’s employment with the Company.

This policy does not prevent any Aggrieved person from taking recourse to the law of the land.

Important Definitions

- (a) "Sexual Harassment" According to THE SEXUAL HARASSMENT OF WOMEN AT THE WORKPLACE (PREVENTION, PROHIBITION AND REDRESSAL) ACT 2013, sexual harassment includes any one or more of the following unwelcome acts or behavior (whether directly or by implication) namely:
- Physical contact and advances; or
 - A demand or request for sexual favors; or
 - Making sexually colored remarks; or
 - Showing pornography; or
 - Any other unwelcome physical, verbal or non-verbal conduct of sexual nature.

Any act falling under the purview of following cases will be considered as an incident of sexual harassment (Clarification of Unwelcome acts or behavior):

- When submission to unwelcome sexual advances, requests for sexual favours, and verbal or physical conduct of a sexual nature are, implicitly or explicitly, made a term or condition of training/guidance, employment, participation, or evaluation of a person's engagement in any activity.
 - When unwelcome sexual advances, and verbal, non-verbal and/or physical conduct such as loaded comments, remarks or jokes, letters, phone calls or e-mails, gestures, exhibition of pornography, lurid stares, physical contact, stalking, sounds or display of a derogatory nature.
 - Interfering with her work or creating an intimidating, offensive, or hostile environment for her.
 - When a person uses the body or any part of it or any object as an extension of the body with a sexual purpose in relation to another person without the latter's consent or against that person's will, such conduct will amount to sexual assault.
 - When deprecatory comments, conduct or any such behaviour is based on the gender identity/sexual orientation of the person and/or when the premises or any public.
 - Forum of the organization is used to denigrate/discriminate against person(s), or create a hostile environment on the basis of a person's gender identity/sexual orientation.
 - When a person shows any humiliating treatment to woman that is likely to affect her health and safety.
- (b) "Aggrieved" means, who alleges to have been subject to any act of sexual harassment by the respondent.
- (c) "Respondent" or "Defendant" means a person against whom a complaint of alleging sexual harassment has been made under this policy.
- (d) "Complainant" is any aggrieved individual (including a representative as more fully described under Rule 6 of the said Rules, if the aggrieved individual is unable to make a complaint on account of his/her physical or mental incapacity or otherwise, with the written consent of the Aggrieved) who makes a complaint alleging Sexual Harassment under this Policy.
- (e) "Parties" means collectively the Complainant and the respondent.
- (f) "Employee" as defined under the Act and means a person employed with the Company for any work on permanent, temporary, part-time, ad-hoc or daily wage basis, either directly or through an agent, including a contractor, who with or without the knowledge of the Principal employer, whether for remuneration or not, or working on a voluntary basis or otherwise, whether the terms of employment are expressed or implied and includes a co-worker, a contract worker, probationer, trainee, apprentice or called by any other such name.
- (g) "Employer" means person who are responsible for management, supervision and control of the workplace including appointment/removal/termination of employees and will include 'Director and General Manager', 'Chief People Officer (CPO)' and 'Chief Operating Officer (COO)'.
- (h) "Internal Complaints Committee" means and include an Internal Complaints Committee (hereinafter referred to as the "ICC").
- (i) "Member" means a member of the ICC.
- (j) "Presiding officer" or "Chairperson" means the presiding officer of the ICC and shall be a woman employed at a senior level at the workplace amongst the employees.

Internal Complaints Committee (ICC)

The Company has constituted a Internal Complaints Committee (ICC), which deals with all formal Complaints and allegations of Sexual Harassment. Committee will be headed by a woman and not less than half of its quorum comprises of women. Further, to prevent the possibility of any undue pressure or influence from senior levels, such Complaints Committee will involve a third party, either NGO or other body who is familiar with the issues. All Employee members of the Complaints Committee will be selected by the Human Resources Department of the Company.

1. Constitution of Internal Complaints Committee (ICC)

The constitution of the Internal Complaints Committee with the details of the members of the Committee will be notified by the Company from time to time. The names of the members of the Internal Complaints Committee along with their contact details will be displayed, from time to time, on the notice boards(s) at each of the Company's offices/premises across the country, and/or its internal website. The Company will also regularly and promptly notify (in the aforesaid manner) any changes in the constitution of the Internal Complaints Committee, or to the contact details of the members of the Internal Complaints Committee.

Sr. No.	Committee Designation	Name	Gender
1	Presiding Officer/Chairperson	Archana Gupta	Female
2	Member	Amrinder Kour	Female
3	Member	Smiley Chauhan	Female
4	Member	Manjeet Kumar	Male
5	Member	Vivek Gupta	Male
6	External Member	Neepa Sharma	Female

2. Disqualification of Member

No person shall be appointed or continue to be a member of the Committee, if he/she is

1. Declared insolvent by the competent Court;
2. Lunatic or a person of unsound mind;
3. Convicted for an offence involving moral turpitude;
4. Involved in a misconduct amounting to immoral trafficking;
5. Convicted in any criminal offence/s;
6. Facing any inquiry relating to sexual harassment or found guilty of sexual harassment; punished for any misbehaviour or misconduct.

3. Statutory Status

The Internal Committee to Prevent Sexual Harassment of Women at the Workplace is empower to carry out the mandate of the policy and has statutory power as are vested in a Civil Court under the Code of Civil Procedure, 1908 when trying a suit in respect of the following matters:

1. Summoning and enforcing the attendance of any person (COMPLAINANT/COMPLAINEE /WITNESS/RESPONDENT) and examining him/her on OATH and recording the statements;
2. Requiring the discovery and production of valid Documents;
3. Any other matter which may be prescribed;

4. Power and Duties of the Committee

The committee is NOT to act as moral police; neither will it intrude on anyone's privacy. The role of the Committee is to create awareness about sexual harassment and to deal with and recommend punishment for non-consensual acts of sexual harassment, and not to curtail sexual expression within the office building. Members are expected to be sensitive to the issue and not let personal biases and prejudices (whether based on gender, caste, class) and

stereotypes (e.g., predetermined notions of how a “Aggrieved” or “Respondent” should dress up or behave) affect their functioning as members of the committee. The powers and duties can be broadly divided into the following categories:

A. Preventive:

- i. To create and ensure a safe environment that is free of sexual harassment, including safety from persons/visitors coming into contact at the workplace.
- ii. To publicise the policy in English widely, especially through notice boards and distribution of pamphlets;
- iii. To publicise in English the names and phone numbers of members of the Committee.

B. Gender Sensitization:

Gender Sensitization involves creating awareness about issues of gender and sexuality and working towards and creating an enabling environment of gender justice where all can work together with a sense of personal security and dignity. Sensitization and Awareness will be a basic function of the Committee formed. The following is a list of methods in which awareness and sensitization of employees, management will be conducted:

- i. An orientation seminar will be organized to discuss the nature and scope of the sexual harassment of women at the workplace (Prevention, Prohibition and Redressal) Act 2013, at the beginning of the Financial year;
- ii. One or more workshops/seminars annually where external experts on the subject will interact with all employees;
- iii. Seminars, performances and discussion forums where gender sensitization and gender awareness will be the focus – these will happen during the year;
- iv. Spreading awareness of the policy and implementation of the same through informal sessions, performances, cultural events, etc., about the policy being implemented by TestingXperts Private Limited (India);

C. Remedial:

- i. The mechanism for registering complaints should be safe, accessible, and sensitive;
- ii. To take cognisance of complaints about sexual harassment, conduct enquiries, provide assistance and redressal to the victims, recommend punitive action or take immediate action against the Aggrieved, if necessary;
- iii. To recommend disciplinary action for any complaint registered with the Committee after the enquiry to the Director / administration / or concerned authorities and to follow-up action and monitor the same;
- iv. To recommend organization to provide assistance to the Complainant if she/he so chooses to file a complaint in relation to the offence under the Indian Penal Code or any other law for the time-being in force;
- v. To recommend the Organization to provide the medical intervention with the consent of the Complainant or even without consent in such cases where the Complainant is physically or mentally incapacitated to give her/his consent;
- vi. To inform the administration to arrange for appropriate psychological, emotional, and physical support (in the form of counselling, security and other assistance) to the victim if she/he so desires.

5. Meetings of the Committee

The members of the Committee shall meet at least four times in a year. The Chairperson shall preside over the meeting. In the absence of the Chairperson, the second senior female member shall preside over the meeting. The Chairperson may upon the request of not less than one third of the total members of the Committee, call a meeting on a date not later than fifteen days after the receipt of such requisition.

1. The quorum of the meeting of the Committee shall be five of its members. If the quorum is not complete in any meeting, it shall be adjourned for half an hour and thereafter, the meeting shall precede with those members who are present in the meeting.
2. All decision in the meeting will be taken through mutual consent from the members of the Committee present in the meeting. In the case of any disagreement among the members regarding any decision, Chairperson of the Committee shall hold the authority to take the final decision, and her decision would be considered as final.

6. Complaint Procedure

1. Any employee Female / Male (hereinafter mentioned as the 'Complainant') shall have the right to file a complaint concerning any harassment including sexual harassment against an employee / management / any of the members of the Committee (hereinafter mentioned as the 'COMPLAINANT') as the case may be;
2. Any Complainant may file a complaint within a period of 3 months from the date of incident. In case of a series of incidents, Complainant should file a case within a period of 3 months from the date of last incident.;
3. Where the Aggrieved person is unable to file a complaint on account of her/his physical or mental incapacity or death or otherwise, his/her legal heir or such other person as may be prescribed may make a complaint under this section;
4. All complaints will only be accepted in writing to Ethics Office through e-mail reach@testingxperts.com or send by registered/ordinary mail, courier, or by personal appearance handed to the Presiding Officer. While initiating inquiry / or taking cognizance of the complaint the ICC would ask the complainant to sign the complaint as per the requirement of Law. Though a written complaint is must (as per the Vishakha Guidelines), however if the complainant / victim does not want to do the same, anybody can write on her / his behalf;
5. Any complaint in writing has to be signed by the Complainant and will be read out to the complainant and will not be acted upon till the same is signed by the complainant;
6. The complainant shall be afforded full secrecy at each stage;
7. The name, address, identity or any other particulars calculated to lead to identification of the Complainant shall be kept confidential and will not be disclosed even to the Committee, till the meeting in this regard is convened;
8. Within a period of 5 working days from the date of such communication, the Chairperson shall convene a meeting to deal with the complaint and make preliminary enquiry/fact finding enquiry to verify the facts of the complaint. An Enquiry Committee will be constituted if the complaint is found genuine;
9. In case, the Enquiry Committee decides to proceed with the complaint, they may have the option to settle the matter between Complainant through reconciliation. For this the wishes of the Complainant shall be ascertained and if the Complainant wishes that a warning would suffice then the alleged Respondent shall be called to the meeting of the Committee, heard and if so satisfied that a warning is just and proper, he may be warned about his behaviour. The matter shall then be treated as concluded and disposed of with a note to that effect made in the Complaint Register. No further enquiry shall be conducted.

7. Constitution of Enquiry Committee

The Enquiry Committee will be a part of the main Committee with the following criteria –

1. When Complainant is an employee: The presence of two employee (one male and one female) is mandatory along with Chairperson (female member), and the External Member;
2. When the Complainant is a Management staff: Presence of two Management staff Faculty members (one male and one female) is mandatory along with Chairperson (female member), and the External Member;
3. When the Complainant is from Administration Staff: Presence of two Administration staff members (one male and one female) is mandatory along with Chairperson (female member), and the External Member.
4. When the Complainant is any other Visitor: Presence of one Staff member, one Management staff member, Chairperson (female member), and the External Member is mandatory;

*** In all cases presence of at least at least one member of opposite Gender is compulsory.

The Enquiry Process

In case the Complainant requests that the complaint should be processed with beyond a mere warning, the same may be processed and has to be solved within a stipulated time of 90 working days.

1. Within five (5) days of the start of the enquiry process, the Inquiry Committee shall furnish a copy of the complaint to the Respondent and complainant along with a written notice requiring both parties to furnish a written submission. In case the complainant does not have any additions to make to the complaint filed earlier, he/she can just submit a statement to that effect.
2. Within a week, both parties shall submit to Inquiry Committee their replies to the documents that have been served on them. The replies may also include a list of questions that the party wishes the Enquiry Committee to ask the other party or its witnesses.
3. Within one week of the receipt of the replies and list of question in (2) above, The Enquiry Committee shall start the process of an oral hearing.
4. In the course of the oral hearing, the complainant, the Respondent, and their witnesses will separately be given a chance to give an account of the instances alluded to in the complaint.
5. All parties can also submit any documentary evidence at the time of the oral hearing.
6. The Enquiry Committee shall have the power to ask questions that it deems fit to all parties during the oral hearing.
7. The Enquiry Committee would also ask questions which have been submitted by the complainant and defendant for the other parties. However, The Enquiry Committee has the right to disallow any questions that it has reason to believe to be irrelevant, mischievous, or gender insensitive.
8. The Enquiry Committee may also call upon additional witnesses and ask them any questions that it may deem fit.
9. Both Parties shall refrain from any form of threat, intimidation or influencing of Witnesses.
10. The Enquiry Committee may also call upon for additional information/documentation about the alleged harassment.
11. The Enquiry Committee shall have the power to ask the relevant authorities for any official papers or documents pertaining to the Complainant as well as the Respondent.
12. The Enquiry Committee shall conduct the proceedings in a fair manner and shall provide reasonable opportunity to the Complainant and Respondent for presenting and defending his/her case.
13. At no time during the inquiry proceedings shall the Respondent and the complainant be placed face to face, or put in a situation where they may be face to face.
14. The Enquiry Committee may consider as relevant any earlier complaints against the Respondent. However, at no time in the enquiry process shall the past sexual harassment history of the Complainant be probed into, as such information shall be deemed irrelevant to a complaint of sexual harassment.
15. If the Respondent fails, without valid ground, to present him for three hearing convened by the chairperson of the Enquiry Committee shall have right to take a decision on the complaint based upon available evidence.
16. The committee may during such investigation, may exercise the power of civil court, vested in it, in respect of:
 - a. Summoning and enforcing the attendance of any person and examining him under oath;
 - b. Requiring discovery and production of documents;
 - c. Any other prescribed matter.
17. Lawyers are not allowed during the enquiry but both sides can avail help independently.
18. Submissions and oral testimonies of the complainant, the Respondent, and witnesses if any as well as any documentary evidence. This enquiry is not a criminal investigation or a proceeding in a court of law – a strong probability, rather than ‘proof beyond reasonable doubt’, is enough to take a decision on the complaint.

Note: Most cases of sexual harassment occur in private, so there may not be any eyewitness. The Enquiry Committee will have to come to a conclusion about the complaint without proof or evidence of this kind. It will rely on circumstantial evidence and the written.

8. Complaint Withdrawal

1. The Complainant may withdraw his / her complaint in writing at any time during the inquiry procedure. However, the Committee must ascertain the reasons for withdrawal of the complaint and record the same in writing and get it counter-signed by the complainant.
2. The complaints enquiry procedure shall, on such withdrawal, be terminated, save in instances in which the Enquiry Committee is informed, knows, or has reason to believe, that the reasons for such withdrawal are the consequences or effect of coercion and intimidation exerted by the Respondent(s), or any person on her/his behalf on the complainant. In such an instance, the complaints enquiry proceedings shall continue in accordance with the procedure outlined in the policy.

9. Disciplinary Actions Enhancement of disciplinary action, by the Committee, could depend on factors such as the nature and extent of injury caused to the Complainant, the impact of the violation on the organization as a whole, the position of the harasser in the power hierarchy, repetition of offence etc.

1. Where the Committee finds an employee of the organization involved in sexual harassment of the complainant, it can recommend disciplinary action in the form of:
 - i. Warning;
 - ii. Written apology;
 - iii. Bond of good behavior;
 - iv. Adverse remarks in the performance assessment;
 - v. Debarring from duties;
 - vi. Denial of membership of statutory bodies;
 - vii. Denial of re-employment or renewal of contract;
 - viii. Stopping of increments/promotion;
 - ix. Reverting, demotion;
 - x. Suspension;
 - xi. Dismissal;
 - xii. Any other relevant mechanism;
2. In such cases where the Committee finds a third party/outsider to be guilty of sexual harassment, the institute's authorities shall initiate action by making a complaint with the appropriate authority and at the Institute level it can recommend disciplinary action in the form of:
 - i. Warning;
 - ii. Written apology;
 - iii. Debarring entry into the organization;

NOTE:

1. The reasons for the action have to be provided in writing.
2. Action will be taken against person(s) who try to pressurize the complainant in any way and any pressure/threat to the committee.

In the above-mentioned reports, confidentiality of the complainants will be maintained

10. Redressal

1. The Committee will submit a report along with recommended disciplinary actions to the Director.
2. The Director of the organization upon receipt of the enquiry report shall implement the disciplinary action on the basis of the recommendations of the Committee under relevant service rules within two months.
3. The disciplinary action will be commensurate with the nature of the violation.

4. In case the complaint is not proved, the Committee shall recommend that no action is required to be taken in the matter. Mere inability to substantiate a complaint or provide adequate proof need not attract action against the Complainant or Respondent.
5. In such cases that are likely to be rare, where the Committee arrives at the conclusion that the allegation by the Complainant is malicious or false with the full knowledge of the Complainant or where the Complainant has produced any forged or misleading document, the Committee may recommend punitive action against such Complainant.
6. If the Committee arrives at a conclusion that during the inquiry any witness has given false evidence or produced any forged or misleading document, it may recommend punitive action against the said witness.
7. Non-adversarial modes of redressal and resolution could also be considered in appropriate cases. Examples of this may be verbal warning, verbal apology, promise of good behaviour etc.
8. The victim of sexual harassment/ Complainant will have the option to seek adjustments such as change of the room/location of the office room, change of work timing / shifts, transfer, etc.
9. The Committee, in exceptional cases, can ask the organization to allow the complainant to proceed on leave for a period of up to maximum of three months (the leave will not be deducted from her leave account).
10. Grant such other relief to the complainant as may be prescribed.

11. Jurisdiction

The policy and the rules & regulations would apply to all employees and management staff members on active roles of TestingXperts Private Limited (India). The policy and the rules & regulations would also apply to service providers and outsiders who may be within the territory of the TestingXperts Private Limited (India) at time of commission of the act coming under the purview of the policy. The policy would apply inside the office building but also on off-office building official duty (workshops, field work, group holidays/excursions organized by TestingXperts Private Limited (India), interviews/meeting with outside people and any other activity organized by TestingXperts Private Limited (India) outside the office building including the period of travelling for such activity).

Note:

1. As per the Supreme Court of India Directive, it is mandatory to ensure safety of women at workplace
2. Employees working at Client's Office(s) may file a complaint as per the Sexual Harassment Rule & Guidelines of that particular Workplace i.e., the Client's office Location
3. The Policy does not prevent any Aggrieved person from taking any legal recourse available to him / her as per the law of the land
4. Unless there is anything repugnant in the subject or context, words importing the masculine gender shall be taken to include females; and words in the singular shall include the plural, and vice versa.

Bharatiya Nyaya Sanhita (BNS), 2023 & The Prevention of Sexual Harassment (POSH) Act, 2013

The Sexual Harassment of Women at Workplace (Prevention, Prohibition, and Redressal) Act, 2013 (PoSH) is a separate legislation which was specifically designed to address sexual harassment in the workplace. **This means that changes made to the BNS do not directly change the PoSH Act or its procedures.**

But the new Bharatiya Nyaya Sanhita (BNS) i.e., the new criminal legislation that replaces India's older Penal Code (IPC) is a bid to carry out a comprehensive overhaul of the Indian Penal Code and modernize the Indian criminal justice system. Among other crimes, the changes in the BNS have strengthened the legal framework for addressing crimes against women, including sexual harassment. These changes have led to clearer definitions and stricter penalties have transformed laws to be more victim-centred in their applicability.

The changes to the BNS have had a significant impact on the implementation and enforcement of the PoSH law in India. These changes can act as learnings which can be adopted by organisations to fortify their commitment to the PoSH Act and build a strong anti-harassment culture.

A Broad Understanding of Sexual Harassment

The BNS has given expanded definitions to crimes, including a very exhaustive definition to the offence of "Sexual Harassment". The earlier definition under **Section 354A**, now in the BNS is as follows:

"Sexual harassment includes unwelcome physical contact and advances, requests for sexual favors, making sexually colored remarks, showing pornography against someone's will, and any other unwelcome behavior."

Therefore, the BNS now criminalises several acts, whether subtle or apparent, as sexual harassment. For organisation, this extended understanding of sexual harassment holds several key takeaways for ensuring successful implementation of PoSH directives, such as:

- This definition is similar to how sexual harassment has been defined under the PoSH Act. Hence, it signifies the importance for organisations to communicate to the immediate and appropriate consequences for any instance of sexual harassment, regardless of its perceived severity.
- The broad understanding of harassment impresses upon employers the need to create policies that clearly define what constitutes sexual harassment, focusing on subtle and non-verbal forms.
- This also emphasises the need for organisations to encourage employees to speak up about any inappropriate behaviour, assuring them that even minor misconducts will be taken seriously.

Updates and Protections

The Bharatiya Nyaya Sanhita now ensures that complainants of sexual harassment are informed about the progress of their cases, with mandatory updates on investigations. Complainants are provided with robust legal support and protections to ensure they can report offences without fear of retribution or dismissal. Such provisions are also made in the PoSH Act.

Organizations can emulate the principles laid down by the BNS and PoSH Act, by establishing clear guidelines that ensure a fair and unbiased investigation process. They must ensure that complainants are fully informed of their rights, the steps involved in filing a complaint, and what to expect during an inquiry. Further, they may also assist by:

- Offering psychological counselling services to complainants, helping them to feel supported and understood.
- Building better access to legal resources, ensuring that complainants can pursue their cases without any fear.
- Monitoring the workplace environment closely after a complaint is filed to ensure that the victim is not facing any kind of retaliation.
- Providing complainants with ongoing support and assurance that their safety and well-being are a priority for the organization.